HILCHOT SHABBAT

Bishul Ahar Afiyah — Toast, Coffee & Tea: Hilchot Shabbat

Given Thursday 5 March 2026 · Siman 318, Seifim 4-5

Siman: 318 (Bishul — Cooking on Shabbat) **Seifim:** End of ד (Dalet) + ה (Heh) **Topics:** Bishul Achar Afiyah (Cooking After Baking), The Ladle Question, Toast, Turkish Coffee, Nescafé, Tea Bags & Tea Leaves

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Recap: What We Have Covered in Siman 318 So Far

- **Seifim 1–2:** Ma'aseh Shabbat — penalties for cooking on Shabbat (intentional/unintentional), benefiting from the result. Cooking for a choleh.
- **Seif 3:** Toldot Ha'Or, cooking in the sun, toldot hachamah. Applications: dud shemesh, microwave.
- **Seif 4 — Six major machlokot covered across three shiurim:**

1. Cooking from ma'achal Ben Drosai to fully cooked — Rambam (asur de'oraita) vs. Rosh (mutar). Shulchan Aruch rules like Rambam: asur.
2. Bishul achar bishul b'lach (liquids) — Rambam (ein bishul achar bishul even for liquids) vs. Rosh (yesh bishul). Shulchan Aruch rules like the Rosh: asur. Plus: Rema's position, Sefardi/Ashkenazi interactions, hotplates on timers, asking a non-Jew.
3. Irui kli rishon — Rabbeinu Tam (cooks, asur de'oraita) vs. Rashbam (doesn't cook, mutar). Shulchan Aruch rules like Rabbeinu Tam: asur.
4. Kli sheni — Mechzi k'mevashel (first answer of Tosfot: asur derabanan) vs. no issue (second answer). Ashkenazim: asur. Sefardim: mutar.
5. Kalei habishul — delicate items that cook even in a kli sheni. Cannot put in kli sheni; can put in kli shlishi (Rav Moshe vs. Chazon Ish).
6. **This shiur:** Bishul achar afiyah / afiyah achar bishul (cooking after baking and vice versa).

Seif ה (Heh): Bishul Achar Afiyah — Cooking After Baking

Background: The Categories of Heat Transformation

Category	Hebrew	Method	Example
Bishul	בישול	Cooking in liquid (water or oil)	Boiling soup, deep frying
Afiyah	אפייה	Baking (dry heat, enclosed)	Challah in an oven
Tzli	צלייה	Roasting (dry heat, open flame)	Barbecue, Korban Pesach

Afiyah and tzli are halachically identical — both are "dry heat." The distinction matters because the principle of אין בישול אחר בישול (no cooking after cooking) clearly applies within the same category. The question is: does it apply **across** categories?

The Machloket Rishonim

Rabbi Eliezer mi-Metz (Sefer Yereim) — There IS Bishul Achar Afiyah

Position: Although אין בישול אחר בישול, there **is** bishul after afiyah and afiyah after bishul. If something is baked, you cannot cook it on Shabbat, and vice versa. The act of cooking something that was previously baked creates a **ta'am chadash** (new dimension/transformation) — it is not merely "further processing" but a fundamentally different act.

Two proofs from Pesach:

Proof 1 — Matzah: Halacha states אין יוצאים במצה מבושלת — you do not fulfill the mitzvah with boiled matzah. Matzah must be baked, and if you then cook it (soak it in hot water), you no longer fulfill the mitzvah. This shows that cooking after baking changes the essential status of the food — it is no longer "baked bread" but "cooked bread."

Proof 2 — Korban Pesach: The Torah states כי אם צלי אש — the Korban Pesach must be roasted only. The Gemara (Pesachim) rules: צלאו ואחר כך בשלו חייב — if you roasted it and then cooked it, you have violated the prohibition. This shows that cooking after roasting is a meaningful new act.

The Ra'avyah (Avi Ezri) — There is NO Bishul Achar Afiyah

Position: Both proofs are refutable. אין בישול אחר בישול applies across all categories — once food is fully processed by heat (in any form), it is not subject to further bishul.

Refutation of Proof 1: The Gemara says ta'am matzah ba'inan — you need to taste the matzah. Boiling the matzah doesn't create a "new cooking"; it simply destroys the taste of baked matzah. You cannot fulfill the mitzvah because you no longer taste baked bread, not because a new act of "cooking" occurred.

Refutation of Proof 2: The Torah specifically commands כי אם צלי אש — "only roasted." This is a specific prohibition unique to the Korban Pesach. You cannot generalise from this to all foods on Shabbat.

The Beit Yosef's comment: He writes that the question on the Yereim is a "kushya chazaka" (strong challenge), indicating he finds the Ra'avyah's refutation compelling.

Shulchan Aruch's Ruling (Seif Heh)

יש מי שאומר שדבר שנאפה או נצלה אם בשלו אחר כך במשקה יש בו משום בשול ואסור ליתן פת אפילו בכלי שני

"There is **one** who says that something baked or roasted, if you then cook it in liquid, it is subject to bishul, and you may not put bread even in a kli sheni."

ויש מתירין

"And there are **those** (plural) who permit."

Key textual observation (Chacham Ovadia): The first opinion is introduced as יש מי שאומר (singular — "one who says"), while the second is ויש מתירין (plural — "those who permit"). This indicates the permissive view is more mainstream.

Why Can't You Put Bread Even in a Kli Sheni? (Two Reasons for Ashkenazim)

If you hold bishul achar afiyah, the Yereim adds: bread cannot be placed even in a kli sheni because:

1. **Mechzi k'mevashel** — It looks like cooking (the Tosfot reason from the Mishna, applicable to all items in a kli sheni).
2. **We don't know what kalei habishul is** — Since we cannot define precisely which items are "easily cooked," we must suspect everything might be kalei habishul and therefore cookable even in a kli sheni.

An alternative reading (Rav Ben-Tzion Abba Shaul): Perhaps because it was already baked, the kli sheni paradoxically **can** cook it — the prior baking makes it more susceptible to further transformation by liquid heat.

The Rema's Ruling (Ashkenazi)

ונהגו להיזהר לכתחילה שלא ליתן פת אפילו בכלי שני כל זמן שהיד סולדת בו

The Ashkenazi minhag: Be strict — do not put bread even in a kli sheni as long as it is yad soledet bo.

The Rema also brings three tiers:

1. First opinion (Yereim): Asur even in kli sheni.
   ויש מתירים בכלי שני — Some permit in a kli sheni (not worried about kalei habishul for everything).
   ויש מקילים אפילו בכלי ראשון — The Ra'avyah: permitted even in a kli rishon (no bishul achar afiyah at all).

Psak for Ashkenazim: Be strict — do not put bread in kli sheni.

The Ladle Solution (Mishnah Berurah)

The Mishnah Berurah (s.k. 45) addresses those who pour soup over bread:

לכל הפחות ישאב בכף מן הקדרה כדי שתהא ככלי שלישי

Solution: Use a ladle. The ladle becomes kli sheni; the bowl then becomes **kli shlishi**. In a kli shlishi, even Ashkenazim agree you may put bread.

Apparent contradiction in Mishnah Berurah: In s.k. 87, he writes that a ladle can retain the status of the vessel it serves from (i.e., remain kli rishon). Resolution: Here, with multiple doubts (machloket Rishonim about bishul achar afiyah + already in a kli sheni context), he is lenient regarding the ladle. For completely uncooked items, he would not rely on the ladle downgrading the level.

Status of the Ladle for Sefardim (Chacham Ovadia)

Chacham Ovadia rules that a ladle **generally does** transfer down a level (kli rishon → kli sheni), with one caveat: if the ladle is left in the pot long enough to become very hot itself, it may retain the pot's status. For a normal quick scoop, it transfers down.

Material matters: Metal conducts heat faster than plastic, so a metal ladle left in the pot is more likely to retain kli rishon status.

Be'dieved

The Mishnah Berurah rules: בדיעבד אפילו בכלי ראשון אין לאסור משום בישול — After the fact, even if placed in a kli rishon, the food is not forbidden. This consistent principle applies: whenever there is a machloket Rishonim and the violation is disputed, the food is permitted be'dieved.

The Contemporary Sefardi Machloket

Rav Ben-Tzion Abba Shaul — Be Strict

In his introduction to Or LeTzion, he argues:

- The general rule יש ויש הלכה כבתרא (when Shulchan Aruch brings two opinions, follow the second) does not apply to **issurei de'oraita** (Torah-level prohibitions).
- When the potential violation is de'oraita, one must follow the stricter opinion even if it's the first one cited.
- Therefore: Sefardim should be strict — yesh bishul achar afiyah.

Chacham Ovadia Yosef — Be Lenient

Chacham Ovadia disagrees, based on multiple arguments:

.The second opinion (matirin) is the halacha — **יש ויש הלכה כבתרא**

2. **Why bring the first opinion?** The Chida explains: mishum kevodo — out of respect for a significant opinion, even though we don't follow it.
3. **Singular vs. plural:** יש מי שאומר (one person says it's asur) vs. ויש מתירין (many permit) — the permissive view is more widely held.
4. **Proof from later in the siman:** The Shulchan Aruch permits placing fully cooked food next to a hotplate (which constitutes "baking/roasting after cooking" — afiyah achar bishul), showing he does not hold bishul achar afiyah.

Conclusion: Chacham Ovadia rules there is **no bishul achar afiyah and no afiyah achar bishul.** Once food is fully processed by any form of heat, it is not subject to further bishul.

Practical Applications

Toast on Shabbat

Question: Can you place bread on a hotplate to make toast?

Analysis: Bread is baked (afiyah). Toasting it further is afiyah achar afiyah — baking after baking. Even the Yereim who forbids bishul achar afiyah agrees that afiyah achar afiyah is permitted (same category).

Rav Ben-Tzion Abba Shaul's objection: Although it's technically the same category, toasting creates a ta'am chadash (new taste/texture) and should be forbidden. He extends the logic of bishul achar afiyah to include any transformation that produces a new dimension.

Ben Ish Chai's objection: Makeh b'patish — completing bread into toast is a "final hammer blow." However, virtually all poskim reject this: there is no makeh b'patish with food.

Chacham Ovadia's ruling: Mutar. We don't hold bishul achar afiyah, and extending it to afiyah achar afiyah with ta'am chadash is an unjustified chiddush. **You may make toast on Shabbat** by placing bread on the hotplate.

Turkish Coffee

The issue: Turkish coffee beans are roasted (tzli/kalui — dry heat). Pouring hot water on them is bishul achar tzli.

Approach	Ruling
Rav Ben-Tzion Abba Shaul	Cannot pour from urn (irui kli rishon) onto Turkish coffee. Put water in cup first (kli sheni), then add coffee. Also concerned it may not be fully roasted.
Chacham Ovadia	Me'ikar hadin mutar — no bishul achar tzli. But tavo alav bracha (praiseworthy) to use kli sheni because perhaps the beans aren't fully roasted.

Practical recommendation for Sefardim: Pour water from urn into cup (kli sheni), then add Turkish coffee.

Nescafé / Instant Coffee / Cocoa

These products have been **fully cooked** during manufacturing (processed with liquid/heat).

Chacham Ovadia rules clearly: You may pour directly from the urn onto Nescafé or cocoa in a cup. This is irui kli rishon onto something already fully cooked — אין בישול אחר בישול.

Those who are machmir: Use a kli sheni (pour water into cup first, then add the instant coffee) — out of concern that it may not be fully processed, or to avoid confusion with other coffees.

Ashkenazim: Use kli shlishi for Turkish coffee. For Nescafé, there is more room for leniency but many still use kli sheni or shlishi.

Tea — The Major Discussion

The Mishnah Berurah's Lengthy Treatment

The Mishnah Berurah writes an extended discussion warning about the severity of improperly making tea on Shabbat:

תה בשבת פשוט בפוסקים דיש בו משום בישול ובמזיד יש בו איסור סקילה ובשוגג חייב חטאת

Tea involves real bishul — intentional violation carries sekilah; unintentional, a chatat.

What everyone agrees is forbidden:

- Pouring from the urn directly onto tea leaves (irui kli rishon — asur de'oraita for both Sefardim and Ashkenazim)

What the Mishnah Berurah says is also forbidden:

- Putting tea leaves into a kli sheni — because of mechzi k'mevashel AND because tea leaves may be kalei habishul

The Mishnah Berurah's two solutions:

1. **Pre-cook the tea leaves:** Pour boiling water onto the leaves before Shabbat, mix them thoroughly. They are now "cooked" and can be further heated on Shabbat (אין בישול אחר בישול). Strain the essence before Shabbat.
2. **Make a tea essence (recommended):** Prepare concentrated tea before Shabbat. On Shabbat: pour water from the urn into a cup (kli sheni), then add the pre-made essence. Water is explicitly permitted in a kli sheni (the Gemara states this directly).

Note on dyeing (tzvi'ah): Adding tea essence to water colours the water. The Mishnah Berurah and Chacham Ovadia agree: there is no prohibition of dyeing with foods. The Ben Ish Chai is machmir and says to add the "dye" (essence) first and then the liquid (reversing the normal dyeing process), but this is not followed.

Chacham Ovadia's Ruling on Tea

Tea leaves / mint (na'ana) leaves:

- Me'ikar hadin: may be placed in a kli sheni.
- HaMachmir tavo alav bracha: to be stringent, use a kli shlishi (third vessel) because they may be kalei habishul.

Tea bags:

- **Mutar to put in a kli sheni** — even if kli sheni could theoretically cook kalei habishul, it cannot cook more than irui kli rishon, which only cooks kdei klipa (one layer). The bag itself absorbs that layer of "cooking," and the tea inside the bag is protected.
- The Mishnah Berurah's entire discussion was about tea **leaves**, not tea bags (which didn't exist in his time).

Ashkenazim with tea bags: Many are machmir to use kli shlishi — because they suspect everything is kalei habishul and kli sheni can cook it.

Summary Table: Practical Rulings

Item	Sefardi (Chacham Ovadia)	Ashkenazi (Mishnah Berurah)
Toast (bread on hotplate)	Mutar	Mutar (afiyah achar afiyah)
Challah in soup	Mutar (no bishul achar afiyah)	Asur in kli sheni; use ladle → kli shlishi
Croutons in soup	Mutar	Very likely mutar (deep-fried = bishul; use ladle)
Matzah in soup (Pesach/Shabbat)	Mutar	Asur in kli sheni; use ladle → kli shlishi
Nescafé / cocoa	Mutar even with irui kli rishon	Kli sheni or shlishi recommended
Turkish coffee	Kli sheni recommended	Kli shlishi
Tea bags	Kli sheni — mutar	Kli shlishi
Tea leaves / na'ana	Kli sheni me'ikar hadin; kli shlishi recommended	Kli shlishi, or pre-made essence

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Key Halachic Principles from This Shiur

1. **Bishul achar afiyah / afiyah achar bishul:** Machloket Rishonim. Ashkenazim are machmir. Chacham Ovadia: mutar — no bishul across categories.
2. **Afiyah achar afiyah / bishul achar bishul:** Everyone agrees — permitted (same category, no new dimension). Exception: Rav Ben-Tzion's ta'am chadash argument (rejected by Chacham Ovadia).
3. **Afiyah achar tzli / tzli achar afiyah:** No issue — these are the same halachic category (dry heat).
4. **The ladle:** Transfers down one level (kli rishon → kli sheni) according to most poskim. Solves many problems for Ashkenazim.
5. **Be'dieved:** Whenever bishul achar afiyah is in doubt and the food was placed in hot liquid, it is permitted after the fact.
6. **Tea bags vs. tea leaves:** Tea bags have an additional layer of protection (the bag itself absorbs kdei klipa), making them more lenient than loose leaves.

Preview: Next Week

- **Seifim ו–ח (Vav, Zayin, Chet):** Further laws of bishul including placement near fire, hazarah (returning food to the fire), and related topics.

Shabbat Shalom

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